

26SMCV00272 26SMCV00272

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CO%2C08%2F20%2F2026

Source SHA-256: 8bb642ce05434239f80e4c2a45a9a5b7d13b5233acda52c4696ee8396c83b622

Case Number: 26SMCV00272 Hearing Date: August 20, 2026 Dept: O

TENTATIVE RULING

August 20, 2026

26SMCV00272 (Miller v. Movshovich,
et. al.)

RELEVANT BACKGROUND

On January 7, 2026,
plaintiff Alexander Miller (Plaintiff) filed the complaint against Ilya
Movshovich (Ilya); Ashley Movshovich; Digital Athlete Ventures, LLC; Cobh
Ramblers Limited; Movshovich Consulting; Volk Consulting, LLC; Bryant Clark;
Fifty Five South Ventures; Alex Malavenda; Pedro Lombardo; JPX Investments; and
Does 1-50. Plaintiff alleges eleven causes of arising from conduct occurring
outside of California and a contract that mandates Ireland as the sole venue
for litigation, and Irish law as the sole law to be applied, for a matter
concerning an Irish football club. (See Complaint, Ex. A.) Additionally, Ilya is
a Florida resident. (Id. ¶ 2 [“Defendant...is an individual residing at 9320 SW
178th Street, Miami, Florida 33157.”].)

On June 5, 2026, the
Court granted Ilya's
motion to quash service of summons.

INSTANT MOTION

On June 5, 2026, Plaintiff filed the instant

motion to vacate the Court's June 5, 2026 order granting Ilya's motion to quash service of summons. Ilya filed an opposition, and Plaintiff filed a reply.

DISCUSSION

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect..." (Code Civ. Proc., § 473, subd. (b).

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Id., § 1008, subd. (a).)

Here, Plaintiff argues that the Court's June 5, 2026 order on the motion to quash should be vacated due to a calendaring conflict. Plaintiff's counsel asserts that he moved between two appearances and was still on the telephone with a different court when this Court called Plaintiff's case. (Aaronoff Decl.) Plaintiff argues that this constitutes "mistake, inadvertence, surprise, or excusable neglect" and that relief is therefore warranted under Code of Civil Procedure § 473(b) and 1008(a). Plaintiff then reiterates essentially the same points made in his opposition to the motion to quash. (See Motion at pp. 5-9; Opp to Motion to Vacate at pp. 5-7.)

In opposition, Ilya argues that there are no new facts, and Plaintiff's counsel explicitly admits that there is nothing new: "[Counsel] sought to direct the Court's attention to evidence already in the record and already briefed." (Plaintiff's Reply at p. 4.) Ilya points out that there is also no new law, as the cases cited by Plaintiff appear in his opposition brief.

The Court finds no basis for the requested relief under Code of Civil Procedure sections 473(b) or 1008(a). The argument Plaintiff's counsel claims he would have made at the hearing is essentially the same argument made in the opposition papers and would not have changed the Court's ruling.

The Court's ruling did not depend upon whether there was an enforceable forum-selection clause. As the Court stated, "regardless [of the forum-selection clause], Plaintiff has not shown that specific jurisdiction is appropriate." (June 5, 2026, minute order at p. 4.)

Accordingly, Plaintiff's motion to vacate the Court's June 5, 2026 order is DENIED.